

ETHICHAWKS

FORENSIC GOVERNANCE & COMPLIANCE CONSULTANCY

LODGING OF FORMAL COMPLAINT

IN TERMS OF THE JUDICIAL SERVICE COMMISSION ACT, 1994 (ACT NO. 9 OF 1994)

Regarding Judicial Conduct and Systemic Administrative Malfeasance within the Office of the Chief Justice (Western Cape Jurisdictions)

“Take notice that this complaint is submitted in parallel with, and is integrally linked to, the Formal Complaint currently lodged with the Information Regulator (Reference: x.x.x) regarding systemic POPIA and PAIA violations by the same administrative officials. The findings of the Information Regulator are requested to be incorporated into the JSC’s audit of these registry activities.”

Date of Lodging: 9 July 2026

Addressed to: The Chairperson of the Judicial Conduct Committee
Judicial Service Commission | Office of the Chief Justice
Constitutional Court Building, Private Bag X1, Constitution Hill, Braamfontein,
Johannesburg, 2017

Complainant: Wilbur William Matthee (Sr.)

Self-Represented Whistleblower

SECTION 1: PARTICULARS OF THE COMPLAINANT

Full Names	Wilbur William Matthee (Sr.)
Professional Status	Specialist Registered Nurse (16 years clinical governance experience); Director: EthicHawks Forensic Governance & Compliance Consultancy
Contact Details	069 635 1435
Litigant Status	Self-represented whistleblower facing severe, documented financial attrition and institutional retaliation
Complainant's Capacity	Appears in person; no legal representation

SECTION 2: SUBJECT MATTER OF THE COMPLAINT

This complaint is formally lodged against the following judicial officers and heads of jurisdiction for severe breaches of judicial conduct, constitutional violations, and an ongoing failure to exercise mandatory administrative and judicial oversight:

Respondent	Office	Nature of Complaint
The Honourable Judge Anderson	Western Cape Division, High Court of South Africa	Violation of judicial temperament; failure to protect a vulnerable, self-represented litigant; issuing a punitive costs order in the face of a visible medical emergency
The Honourable Judge President of the Labour Court of South Africa	Labour Court, Cape Town	Complete failure of judicial oversight; total institutional silence following formal escalation of registry malfeasance
The Honourable Judge President of the High Court of South Africa (Western Cape Division)	High Court, Western Cape Division	Absolute failure of judicial oversight regarding systemic suppression of court records and electronic data manipulation by registry executives

SECTION 3: STATUTORY GROUNDS FOR COMPLAINT

This complaint is lodged on the following grounds as enumerated in Section 14(4) of the Judicial Service Commission Act, 1994:

- Section 14(4)(a): Gross misconduct as envisaged in Section 177(1)(a) of the Constitution.
- Section 14(4)(b): Wilful or grossly negligent breach of the Code of Judicial Conduct.
- Section 14(4)(e): Wilful or grossly negligent conduct incompatible with or unbecoming of the holding of judicial office, including conduct prejudicial to the independence, impartiality, dignity, and effectiveness of the courts.

SECTION 4: SUMMARY OF MATERIAL GRIEVANCES

Grievance 1: Violation of Judicial Temperament and the “Ambulance at the Courthouse” Principle (Judge Anderson)

Date of Incident: 25 March 2026

Case Reference: High Court Case No: 2026-066952

The Incident:

During proceedings before Judge Anderson, the following occurred:

- The presiding Judge expressed an adversarial temperament, stating on the record that her patience had “deteriorated” regarding the Complainant's Practice Note—a remark inconsistent with the duty to assist vulnerable, self-represented litigants.
- The Court permitted an unmandated Advocate to intrude upon and assume conduct of the Complainant's representation, entirely disregarding the Complainant's disclosed, severe PTSD and documented medical duress.
- This unmandated representative was suffering an acute, visible psychiatric crisis during the hearing and was involuntarily admitted to Somerset Hospital for 72-hour psychiatric observation immediately following the proceedings—a fact witnessed by the Court directly from chambers.
- Despite the clear medical emergency and the evident invalidity of this unmandated representation, Judge Anderson issued a Scale C punitive costs order exceeding R84,000.00 against the Complainant.

Legal Breaches:

- Wilful or grossly negligent breach of the Code of Judicial Conduct (s14(4)(b)): Failure to exercise judicial temperament; failure to protect a vulnerable litigant.
- Conduct incompatible with judicial office (s14(4)(e)): Permitting an unauthorised representative in acute psychiatric crisis to speak for a litigant, then penalising the litigant for that representative's conduct.
- Violation of Section 165(2) of the Constitution: Failure to apply the law impartially and without fear, favour, or prejudice.

The “Ambulance at the Courthouse” Principle:

A court of law may not base a punitive order upon the conduct of a party's purported representative when that representative was, at the material time, in an acute state of psychiatric crisis—a crisis the Court itself witnessed and was thereby placed on legal notice of.

The resulting costs order was granted on the basis of legally tainted conduct and is voidable on that ground alone.

Biowatch Principle Violation:

The Biowatch principle establishes that self-represented litigants who bona fide seek to ventilate constitutional issues against the State should not be penalised with adverse costs orders. The Complainant, as a destitute whistleblower raising issues of constitutional import, was subjected to a punitive Scale C order—a direct violation of this principle.

Implication:

The punitive costs order directly facilitates a corporate “litigation by attrition” strategy, ensuring a 100% guarantee of absolute financial destitution for a whistleblower and effectively silencing constitutional oversight.

Grievance 2: Failure of Judicial Oversight by Heads of Jurisdiction

Date of Escalation: 09 June 2026

Reference Dossier: EH/JO/2026/003

The Incident:

- On 9 June 2026, a comprehensive formal escalation detailing severe registry malfeasance, administrative obstruction, and statutory data security breaches was transmitted via the Director of Court Operations, Mrs. Ruanne David.
- Director David formally confirmed on 9 June 2026 at 21:40 that the correspondence was submitted to the respective Judge Presidents.
- As of today, 9 July 2026 (30 calendar days later), absolutely no response, intervention, or acknowledgment has been received from either Judge President.

Legal Breaches:

- Wilful or grossly negligent breach of the Code of Judicial Conduct (s14(4)(b)): Failure to exercise judicial oversight over subordinate administrative staff.
- Conduct incompatible with judicial office (s14(4)(e)): Allowing subordinate administrative staff to operate as a functional lawless entity.
- Violation of Section 165(4) of the Constitution: Failure to protect the courts' independence, impartiality, dignity, and effectiveness by failing to intervene in documented administrative malfeasance.

Implication:

This total failure of oversight directly enables executive registry staff to manipulate records, suppress evidence, and engage in procedural gatekeeping without consequence—constituting a profound dereliction of constitutional duties.

Grievance 3: Registry Malfeasance Enabled by Judicial Silence

The failure of judicial oversight has directly enabled executive registry staff to engage in the following:

3.1 Suppression of Audio Evidence (Acting Chief Registrar Nicola Hanekom)

- The Complainant has requested the official digital audio recordings of High Court proceedings since 26 March 2026, with a formal re-escalation on 3 June 2026 to prevent misrepresentation the the Speaker of The National assembly.

- These recordings are the primary, objective evidence required for a Rule 42(1)(a) rescission application—which does not require showing good cause, only that the order was erroneously sought or granted.
- The recordings are also essential to expose a bad-faith misrepresentation made by corporate counsel (Deneys Reitz Inc.) to the Speaker of the National Assembly.
- Acting Chief Registrar Hanekom's ongoing silence constitutes administrative complicity in misleading Parliament.

3.2 Manufactured Procedural Gatekeeping (Registrar Farzaana Ismail)

- On 12 May 2026: Registrar Ismail confirmed that Case No: 2026-077546 was compliant and on the backlog.
- On 10 June 2026: Registrar Ismail radically shifted positions, inventing a non-existent requirement for a CCMA “referral certificate” for a direct Section 77A BCEA application.
- This fraudulent application of the rules was manufactured solely to retroactively justify illegal administrative delays.

3.3 Systemic Data Failures and Data Leakage

- The registries are processing corrupted indices and generating false automated “ghost notifications”—admitted by Director David on 22 June 2026.
- Registrar Tsakani Soundy committed a severe statutory data breach by leaking confidential, third-party medical and clinical psychiatric files (the Armstrong v City of Cape Town file) to the Complainant on 10 April 2026.

Legal Breaches:

- Gross misconduct (s14(4)(a)): Enabling administrative staff to engage in record manipulation and evidence suppression.
- Conduct incompatible with judicial office (s14(4)(e)): Allowing the suppression of evidence vital to parliamentary oversight and constitutional accountability.

Implication:

The cumulative effect of these actions is a systemic governance collapse—a functional denial of access to justice that shields the court from accountability and facilitates the misrepresentation of judicial proceedings to external constitutional oversight bodies.

SECTION 5: TABLE OF VIOLATIONS

Grievance	Respondent	Constitutional/Statutory Violation	JSC Act Ground
1	Judge Anderson	s165(2) – failure to apply law impartially; Code of Judicial Conduct – judicial temperament	s14(4)(b), (e)
2	Judge Presidents (Labour Court & High Court)	s165(4) – failure to protect courts' dignity and effectiveness	s14(4)(b), (e)
3.1	Acting Chief Registrar Hanekom (enabled by judicial silence)	s34 – denial of access to courts; s165(4) – failure of oversight	s14(4)(a), (e)
3.2	Registrar Ismail (enabled by judicial silence)	s34 – denial of access to courts; s195 – failure of public administration	s14(4)(a), (e)
3.3	Registrar Soundy (enabled by judicial silence)	POPIA s8, 9, 26 – data breach; s34 – denial of access to courts	s14(4)(a), (e)

SECTION 6: URGENT RELIEF AND DIRECTIVES SOUGHT

The Complainant respectfully requests that the Judicial Service Commission and the Judicial Conduct Committee immediately invoke their statutory powers to order:

A. Judicial Conduct Investigation

1. A Formal Investigation into the judicial conduct of Judge Anderson regarding the events of 25 March 2026, specifically assessing:

- The violation of judicial ethics regarding vulnerable, unrepresented litigants.
- The exploitation of a visible psychiatric emergency to issue a punitive costs order.
- The failure to apply the Biowatch principle.

B. Administrative Audit

2. An Independent Forensic Audit into the administrative operations of the Western Cape High Court and Labour Court registries, with a focus on:

- Record manipulation and misrepresentations made to executive leadership.
- Deliberate withholding of audio logs.
- The “ghost notification” system and data integrity failures.

C. Preservation and Disclosure of Evidence

3. An Immediate Directive for the Preservation of Evidence, compelling:

- Acting Chief Registrar Nicola Hanekom and Director Ruanne David to preserve and immediately release all digital audit trails, electronic correspondence, and full audio recordings related to High Court Cases 2026-066952 and 2026-086906, and Labour Court Cases 2026-077546 and 2026-083299.
- The OCJ to preserve all records pending investigation.

D. Procedural Rectification

4. A Review of the Registry's Interventions, confirming that because Registrar Soundy assumed manual control and personally uploaded the Complainant's filings on 5 May 2026, the procedural onus shifted entirely to the court—making any subsequent procedural penalties against the Complainant unlawful.

E. Interim Protection

5. A Recommendation to the Minister of Justice to consider the suspension of the Scale C costs order pending the outcome of the investigation, given that the order was granted on the basis of legally tainted conduct.

SECTION 7: STATUTORY ELECTRONIC ANCHOR & DECLARATION (ECTA SECTION 13)

Take notice that this entire complaint, alongside its attached forensic exhibits, is executed and electronically signed under Section 13 of the Electronic Communications and Transactions Act (ECTA), Act 25 of 2002.

Formal Declaration in Lieu of Physical Commissioning

I, Wilbur William Matthee, do hereby solemnly affirm and declare under penalty of perjury that:

- The facts and allegations contained in this complaint are, to the best of my knowledge and belief, true and correct.
- This complaint has not been physically printed or processed before a traditional Commissioner of Oaths due to absolute, severe financial impossibility and physical destitution.
- This state of destitution is the direct, intended consequence of the unlawful corporate retaliation, systemic UI-19 statutory fraud, and bad-faith litigation attrition executed against me as a protected whistleblower.
- The Respondents' continuous administrative blockade of my statutory safety nets has intentionally stripped me of the means to process physical legal paper.
- To reject this digitally signed submission on the basis of a missing physical ink stamp would allow the perpetrators of institutional fraud and judicial malfeasance to use the financial ruin they deliberately inflicted upon a whistleblower as a shield against regulatory and constitutional oversight.

I understand that making a false statement in this declaration constitutes an offence and may render me liable to prosecution.

Executed at Cape Town on this 9th day of July 2026.

Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | Community Health

PGDip Health Services Management (NQF 8)

Founder – EthicHawks Forensic Governance & Compliance Consultancy

CI (SA) Compliance Practitioner (Associate) – CISA Pledge

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SECTION 8: INDEX OF APPENDED EVIDENCE DOSSIER

The following immutable primary-source exhibits accompany this submission to form a complete forensic record. Each annexure is separated by a numbered tab divider in this bundle for ease of reference:

Annexure	Description
A1	Formal Escalation (Ref: EH/JO/2026/003) submitted to the Judge Presidents on 9 June 2026
A2	EthicHawks Consolidated Forensic Closure Report dated 23 June 2026
A3	Notice of Administrative Default dated 1 July 2026
A4	Chronological Table of Correspondence (March–July 2026)
A5	Chronological Evidence Log
A6	Bill of Cost – Scale C (R84,000.00+)
A7	Dual Statutory Complaint: Systemic POPIA Violations & Deemed PAIA Refusal (Information Regulator submissions)
A8	EH_Wilbur_Matthee_POPIA_PAIA_Complaint_Information_Regulator.pdf

Yours faithfully,

Wilbur William Matthee

(Complainant in Person)

ANNEXURE

A1

*Formal Escalation (Ref: EH/JO/2026/003) submitted to the Judge
Presidents on 9 June 2026*

EthicHawks Forensic Governance & Compliance Consultancy
JSC Complaint – 9 July 2026 – Wilbur William Matthee (Sr.)

ANNEXURE

A2

EthicHawks Consolidated Forensic Closure Report dated 23 June 2026

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ANNEXURE

A3

Notice of Administrative Default dated 1 July 2026

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JSC Complaint – 9 July 2026 – Wilbur William Matthee (Sr.)

ANNEXURE

A4

Chronological Table of Correspondence (March–July 2026)

EthicHawks Forensic Governance & Compliance Consultancy
JSC Complaint – 9 July 2026 – Wilbur William Matthee (Sr.)

ANNEXURE

A5

Chronological Evidence Log

EthicHawks Forensic Governance & Compliance Consultancy
JSC Complaint – 9 July 2026 – Wilbur William Matthee (Sr.)

ANNEXURE

A6

Bill of Cost – Scale C (R84,000.00+)

EthicHawks Forensic Governance & Compliance Consultancy
JSC Complaint – 9 July 2026 – Wilbur William Matthee (Sr.)

ANNEXURE

A7

Dual Statutory Complaint: Systemic POPIA Violations & Deemed PAIA Refusal (Information Regulator submissions)

EthicHawks Forensic Governance & Compliance Consultancy
JSC Complaint – 9 July 2026 – Wilbur William Matthee (Sr.)

ANNEXURE

A8

EH_Wilbur_Matthee_POPIA_PAIA_Complaint_Information_Regulator.pdf

EthicHawks Forensic Governance & Compliance Consultancy
JSC Complaint – 9 July 2026 – Wilbur William Matthee (Sr.)